



File No.: EXP202318252

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 17, 2023, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure of file number EXP202208440, followed against CONSULTORÍA PERITACIONES ALMERIENSES, S.L. (hereinafter, the respondent). In this resolution, in addition to imposing a fine, the following measures were required:

“SECOND: ORDER CONSULTORÍA PERITACIONES ALMERIENSES, S.L. to notify the Agency within one month of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution.”

Thus, in Legal Ground III of the Agreement of initiation transcribed in the Resolution, regarding the lack of a privacy policy on the website <http://www.peritacionemarcelino.com>, it is stated:

“(…)

In light of the documents in the administrative file, it is evident that the website in question lacks the appropriate privacy policy. In this case, it is mandatory to incorporate it since the respondent, through the contact form, can collect personal data (name and email) and, consequently, process it.

According to Article 13 of the GDPR, the respondent, in its capacity as data controller, must provide various information that it has entirely omitted. Specifically, it is obliged to inform about its contact details, which are insufficient as only a mobile number and email address appear on the website. It also does not inform about the legal basis for processing, the recipients of the personal data, the period during which it will retain the data or, if it is not possible to set it, the criteria used to determine it. Nor does it inform that users can exercise their rights of access, rectification, deletion, limitation of processing, opposition to processing, and data portability; or file a complaint with the supervisory authority.

(…)”

SECOND: The resolution of the sanctioning procedure was duly notified to the respondent by electronic means on April 21, 2023, in accordance with Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), granting a period of one month for the adoption of the imposed measures, as evidenced in the file.

THIRD: After the indicated period elapsed without any written communication received by this Agency regarding the measures implemented by the respondent, it was necessary to request them again on four occasions, so that, within ten working days, they could prove to this Agency that they had adopted the appropriate measures, in accordance with what was agreed in the aforementioned Resolution.

The notifications of the first and fourth requests were carried out in accordance with the rules established in the LPACAP through electronic means, not being collected by the responsible party within the availability period, as evidenced by the acknowledgments of receipt in the file, and therefore understood to have been made in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on August 8 and October 27, 2023.

The second and third requests were returned to sender by unknown by the postal service on September 21 and October 11, 2023, according to the acknowledgments of receipt in the file, despite being sent to the tax address of the respondent provided by the State Agency for Tax Administration.

FOURTH: The respondent has not sent any response to this Agency that proves compliance with the imposed measures.

FIFTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal can be made due to the expiration of the established deadlines for it.

Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

SIXTH: According to the report obtained from the AXESOR tool, the entity CONSULTORÍA

PERITACIONES ALMERIENSES, S.L. is a company established in 2017, for which no financial information is available.

SEVENTH: On January 8, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a sanctioning procedure against the respondent for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

EIGHTH: The initiation agreement of the present sanctioning procedure was notified, in accordance with the rules established in the LPACAP, by means of an announcement published in the Official State Gazette dated February 2, 2024, after two unsuccessful attempts at postal notification to the tax address of the respondent, as evidenced in the file.

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According to Article 42.1 of the LPACAP, the notification of the initiation agreement was made available to the interested party also by electronic means through the single enabled electronic address.

NINTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the party being claimed.

Article 64.2.f) of the LPACAP - a provision of which the claimed party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the claimed party, and the sanction that could be imposed.

Therefore, taking into account that the claimed party has not made allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: The resolution of the sanctioning procedure of file number EXP202208440 and the requirements for compliance indicated in the first, second, and third backgrounds were notified in accordance with the provisions of the LPACAP. Said resolution became firm and enforceable due to the expiration of the periods established for the filing of the appeals indicated therein.

SECOND: The claimed party has not submitted any response to this Agency that proves compliance with the imposed measures.

THIRD: The initiation agreement of this sanctioning procedure was notified to the claimed party, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Gazette dated February 2, 2024, after two unsuccessful delivery attempts at their registered office.

FOURTH: The claimed party has not presented allegations to the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached

In light of the facts presented, it is considered that the claimed party has breached the resolution of the Spanish Agency for Data Protection regarding the measures imposed on them.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the claimed party, for violation of Article 58.2.d) of the GDPR, which states the following: "2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period;"

III

Classification and qualification of the infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the limitation period for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) The failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

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IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR as classified in Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of €1,000.00 (ONE THOUSAND euros).

V

Adoption of Measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period..."

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on CONSULTORÍA PERITACIONES ALMERIENSES, S.L., with NIF B04855128, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of €1,000.00 (ONE THOUSAND euros).

SECOND: TO ORDER CONSULTORÍA PERITACIONES ALMERIENSES, S.L., with NIF B04855128, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to provide proof of having complied with the resolution of the sanctioning procedure of file number EXP202208440.

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THIRD: NOTIFY this resolution to CONSULTORÍA PERITACIONES ALMERIENSES, S.L.

FOURTH: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired, without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with

documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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